

COMMITTEE AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB1453 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Jim Shaw

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED OVERSIGHT
COMMITTEE SUBSTITUTE
FOR
HOUSE BILL NO. 1453

By: Shaw

PROPOSED OVERSIGHT COMMITTEE SUBSTITUTE

An Act relating to foreign ownership of property; defining terms; prohibiting real property ownership by certain parties; providing certain exemptions; requiring divestment of violating property; requiring district attorney or Attorney General to bring suit for violating; providing for judicial foreclosure of property; providing certain documents to be recorded in the county records office; providing for felony punishment and fines; providing affirmative defense to prosecution; providing when title to real property is not invalid or subject to divestiture; prohibiting agricultural land ownership by certain parties; providing certain exemptions; requiring divestment of violating property; requiring certain entities upon discovery of a violation to report such violation to the district attorney or Attorney General; providing that the district attorney or Attorney General may issue certain subpoenas; providing that the district attorney or Attorney General upon a certain determination shall commence legal actions; providing for judicial foreclosure of property; providing certain documents to be recorded in the county records office; providing when title to agricultural land is not invalid or subject to divestiture; providing for felony punishment and fines; providing affirmative defense to prosecution; requiring inclusion of certain affidavit with recording of a deed; directing Attorney General to promulgate

1 certain affidavit forms; providing for codification;
2 and providing an effective date.
3

4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 128.1 of Title 60, unless there
7 is created a duplication in numbering, reads as follows:

8 As used in this act:

9 1. "Agricultural land" means any land which is outside the
10 corporate limits of a municipality and is:

- 11 a. used for forestry production, including without
12 limitation, land exceeding ten (10) acres in which ten
13 percent (10%) of the land is stocked by trees of any
14 size, including land that formerly had trees of any
15 size covering the land that will be naturally or
16 artificially regenerated, or
- 17 b. currently used for, or, if currently idle, land last
18 used within the past five (5) years, for farming,
19 ranching, or timber production, except land not
20 exceeding ten (10) acres in the aggregate, if the
21 annual gross receipts from the sale of the farm,
22 ranch, or timber products produced on the land do not
23 exceed One Thousand Dollars (\$1,000.00).
24

1 This does not include oil, gas, and all other minerals,
2 including coal, lignite, brine, and all minerals known and
3 recognized as commercial minerals underlying the land;

4 2. "Controlling interest" means an ownership interest of fifty
5 percent (50%) or more, in the aggregate;

6 3. "Foreign government" means any government other than the
7 federal government or any government of a state or a political
8 subdivision of a state;

9 4. "Interest in agricultural land" means all direct interest
10 acquired, transferred, or held in agricultural land, including
11 without limitation, a lease of agricultural land:

12 a. for a term of one (1) year or longer, or

13 b. renewable by option for terms which, if the options
14 were all exercised, would total one (1) year;

15 5. "Party" means any individual, corporation, company,
16 association, firm, partnership, society, joint-stock company, trust,
17 estate, or any other legal entity;

18 6. "Prohibited foreign party" means:

19 a. a citizen or resident of a country subject to
20 International Traffic in Arms Regulations, 22 C.F.R.,
21 Section 126.1,

22 b. a foreign government formed within a country subject
23 to International Traffic in Arms Regulations, 22
24 C.F.R., Section 126.1,

- 1 c. a party other than an individual or a government, that
2 is created or organized under the laws of a foreign
3 government within a country subject to International
4 Traffic in Arms Regulations, 22 C.F.R., Section 126.1,
- 5 d. any party other than an individual or government:
- 6 (1) that is created or organized under the laws of
7 any state, and
- 8 (2) in which a significant interest or substantial
9 control is directly or indirectly held or is
10 capable of being exercised by:
- 11 (a) an individual referred to in subparagraph a
12 of this paragraph,
- 13 (b) a foreign government referred to in
14 subparagraph b of this paragraph,
- 15 (c) a party referred to in subparagraph c of
16 this paragraph, or
- 17 (d) a combination of the individuals, parties,
18 or governments referred to in this division,
- 19 e. an Entity of Particular Concern designated by the
20 United States Department of State, or
- 21 f. an agent, trustee, or other fiduciary of a person or
22 entity enumerated in subparagraphs a through e of this
23 paragraph;
24

1 7. "Prohibited foreign-party-controlled business" means a
2 corporation, company, association, firm, partnership, society,
3 joint-stock company, trust, estate, or other legal entity whose
4 controlling interest is owned by a prohibited foreign party;

5 8. "Real property" means all land or property that is not
6 agricultural land;

7 9. "Residence" means a person's principal dwelling place where
8 the person intends to remain permanently for an indefinite period of
9 time;

10 10. "Resident alien" means a person who:

11 a. is not a citizen of the United States, and

12 b. is a lawful permanent resident of a:

13 (1) state of the United States,

14 (2) territory of the United States,

15 (3) trusteeship of the United States, or

16 (4) protectorate of the United States;

17 11. "Significant interest" or "substantial control" means:

18 a. an interest of thirty-three percent (33%) or more held
19 by:

20 (1) a party referred to in subparagraph d of
21 paragraph 6 of this section,

22 (2) an individual referred to in subparagraph a of
23 paragraph 6 of this section,
24

1 (3) a party referred to in subparagraph c of
2 paragraph 6 of this section, or

3 (4) a single government referred to in subparagraph b
4 of paragraph 6 of this section,

5 b. an interest of thirty-three percent (33%) or more held
6 whenever the parties, individuals, or governments
7 referred to in paragraph 6 of this section are acting
8 in concert with respect to the interest even though no
9 single individual, party, or government holds an
10 interest of thirty-three percent (33%) or more, or

11 c. an interest of fifty percent (50%) or more, in the
12 aggregate, held by parties, individuals, or
13 governments referred to in paragraph 6 of this section
14 even though the individuals, parties, or foreign
15 governments may not be acting in concert.

16 SECTION 2. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 128.2 of Title 60, unless there
18 is created a duplication in numbering, reads as follows:

19 A. 1. A prohibited foreign party or a prohibited foreign-
20 party-controlled business shall not acquire by grant, purchase,
21 devise, descent, or otherwise any interest in real property in this
22 state.
23
24

1 2. A party may not hold real property as an agent, trustee, or
2 other fiduciary for a prohibited foreign party or prohibited
3 foreign-party-controlled business in violation of this section.

4 B. A prohibited foreign party or a prohibited foreign-party-
5 controlled business entity in violation of this section shall have
6 one (1) year to divest of the real property as defined by paragraph
7 8 of Section 1 of this act. The provisions of this subsection shall
8 be applicable to real property, as defined by paragraph 8 of Section
9 1 of this act, title to which was acquired prior to the effective
10 date of this act and which is held on the effective date of this act
11 by persons or entities that are subject to the requirements of this
12 act.

13 C. If a prohibited foreign party or a prohibited foreign-party-
14 controlled business entity does not divest the real property as
15 required by subsection B of this section, the district attorney
16 having jurisdiction or the Attorney General shall commence an action
17 in the district court within the jurisdiction of the real property.

18 1. If the ownership of the real property is determined by the
19 district court to be in violation of this section, the court shall
20 order that the real property be sold through judicial foreclosure.

21 2. Proceeds of the sale shall be disbursed to lienholders, in
22 the order of priority, except for liens which, under the terms of
23 the sale, are to remain on the real property.
24

1 3. The district attorney or Attorney General shall promptly
2 record a copy of the following in the county clerk's office of the
3 county where the real property is located:

4 a. upon commencement, notice of the pendency of an action
5 brought under this subsection, and

6 b. the order for the sale of the real property under
7 paragraph 1 of this subsection.

8 D. A prohibited foreign party or a prohibited foreign-party-
9 controlled business entity shall, upon conviction, be guilty of a
10 felony punishable by not more than two (2) years' imprisonment or a
11 fine of Thirty Thousand Dollars (\$30,000.00), or by both such
12 imprisonment and fine.

13 E. It is an affirmative defense to prosecution under this
14 section that a prohibited foreign party or prohibited foreign-party-
15 controlled business entity is a resident alien of the State of
16 Oklahoma.

17 F. Title to real property is not invalid or subject to
18 divestiture due to a violation of this section by:

19 1. Any former owner; or

20 2. Another person holding or owning a former interest in the
21 real property.

22 G. Individuals not subject to this section shall be required to
23 determine or inquire into whether another person is or may be
24 subject to this section.

1 SECTION 3. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 128.3 of Title 60, unless there
3 is created a duplication in numbering, reads as follows:

4 A. 1. Except as provided in Section 4 of this act, a
5 prohibited foreign party or a prohibited foreign-party-controlled
6 business entity shall not acquire by grant, purchase, devise,
7 descent, or otherwise any interest in agricultural land in this
8 state regardless of whether the prohibited foreign party or a
9 prohibited foreign-party-controlled business entity intends to use
10 the agricultural land for nonfarming purposes.

11 2. A party may not hold agricultural land as an agent, trustee,
12 or other fiduciary for a prohibited foreign party in violation of
13 this act.

14 B. A prohibited foreign party or a prohibited foreign-party-
15 controlled business entity that acquires agricultural land in
16 violation of this section remains in violation as long as the
17 prohibited foreign party or a prohibited foreign-party-controlled
18 business entity holds an interest in the agricultural land.

19 C. A prohibited foreign party or a prohibited foreign-party-
20 controlled business entity shall, upon conviction, be guilty of a
21 felony punishable by not more than two (2) years' imprisonment or a
22 fine of Thirty Thousand Dollars (\$30,000.00), or both.

23 D. It is an affirmative defense to prosecution under this
24 section that a prohibited foreign party or prohibited foreign-party-

1 controlled business entity is a resident alien of the State of
2 Oklahoma.

3 E. A prohibited foreign party or a prohibited foreign-party-
4 controlled business entity in violation of this section shall have
5 one (1) year to divest of agricultural land as defined by paragraph
6 1 of Section 1 of this act. The provisions of this subsection shall
7 be applicable to agricultural land, as defined by paragraph 1 of
8 Section 1 of this act, title to which was acquired prior to the
9 effective date of this act and which is held on the effective date
10 of this act by persons or entities that are subject to the
11 requirements of this act.

12 SECTION 4. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 128.4 of Title 60, unless there
14 is created a duplication in numbering, reads as follows:

15 A. A prohibited foreign party or a prohibited foreign-party-
16 controlled business entity, who is a resident alien of the United
17 States, shall have the right to acquire and hold agricultural land
18 in the state upon the same terms as a citizen of the United States
19 during the continuance of his or her residence in the State of
20 Oklahoma.

21 B. 1. If a prohibited foreign party or a prohibited foreign-
22 party-controlled business entity is no longer a resident alien under
23 subsection A of this section, he or she shall have one (1) year to
24 divest of the agricultural land.

1 2. If the prohibited foreign party or a prohibited foreign-
2 party-controlled business entity does not divest of the agricultural
3 land as required by paragraph 1 of this subsection, the district
4 attorney having jurisdiction or the Attorney General shall commence
5 an action in district court within the jurisdiction of the
6 agricultural land.

7 3. If the ownership of the agricultural land is held in
8 violation of this section, the district court shall order that the
9 agricultural land be sold through judicial foreclosure.

10 C. 1. If any person or entity determines a prohibited foreign
11 party or a prohibited foreign-party-controlled business entity has
12 acquired agricultural land in Oklahoma in violation of this act, the
13 person or entity shall report the violation to the district attorney
14 having jurisdiction or the Attorney General.

15 2. Upon receiving notice under paragraph 1 of this subsection
16 or upon receipt of information that leads the district attorney
17 having jurisdiction or the Attorney General to believe that a
18 violation of this act may exist, the Attorney General may issue
19 subpoenas requiring the:

- 20 a. appearance of witnesses,
- 21 b. production of relevant records, and
- 22 c. giving of relevant testimony.

23 3. If, as a result of the investigation under paragraph 2 of
24 this subsection, the district attorney having jurisdiction or the

1 Attorney General concludes that a violation of this act has
2 occurred, the district attorney having jurisdiction or the Attorney
3 General shall commence an action in the district court within the
4 jurisdiction of the agricultural land.

5 4. If the ownership of the agricultural land is held in
6 violation of this act, the district court shall order that the
7 agricultural land be sold through judicial foreclosure.

8 D. 1. The proceeds of the sale of agricultural land by
9 judicial foreclosure authorized under this section shall be
10 disbursed to lienholders, in the order of priority, except for liens
11 which under the terms of the sale are to remain on the agricultural
12 land.

13 2. The district attorney having jurisdiction or the Attorney
14 General shall promptly record a copy of the following in the county
15 clerk's office where the agricultural land is located:

- 16 a. upon commencement, notice of the pendency of an action
17 brought under paragraph 2 of subsection B and under
18 paragraph 3 of subsection C of this section, and
19 b. the order for the sale of the agricultural land under
20 paragraph 3 of subsection B and under paragraph 4 of
21 subsection C of this section.

22 E. Title to agricultural land is not invalid or subject to
23 divestiture due to a violation of this act by:

24 1. Any former owner; or

1 2. Another person holding or owning a former interest in the
2 agricultural land.

3 F. No person not subject to this act shall be required to
4 determine or inquire into whether another person is or may be
5 subject to this act.

6 SECTION 5. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 128.5 of Title 60, unless there
8 is created a duplication in numbering, reads as follows:

9 A. A prohibited foreign party or prohibited foreign-party-
10 controlled business entity owning agricultural land on or after the
11 effective date of this act and not listed under one of the
12 exceptions set out in subsections A and B of Section 4 of this act
13 shall, upon conviction, be guilty of a felony punishable by
14 imprisonment for not more than two (2) years, or a fine of Thirty
15 Thousand Dollars (\$30,000.00), or by both such imprisonment and
16 fine.

17 B. It is an affirmative defense to prosecution under this
18 section that a prohibited foreign party or prohibited foreign-party-
19 controlled business entity is a resident alien of the State of
20 Oklahoma.

21 SECTION 6. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 128.6 of Title 60, unless there
23 is created a duplication in numbering, reads as follows:

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1 On or after the effective date of this act, any deed recorded
2 with a county clerk shall include, as an exhibit to the deed, an
3 affidavit executed by the person or entity acquiring title attesting
4 that the person, business entity, or trust is obtaining the land in
5 compliance with the requirements of Sections 2, 3, 4, and 5 of this
6 act and that no funding source is being used in the sale or transfer
7 in violation of Sections 2, 3, 4, and 5 of this act or any other
8 state or federal law. A county clerk shall not accept and record
9 any deed without an affidavit as required by this section. The
10 Attorney General shall promulgate a separate affidavit form for
11 individuals and for business entities or trusts to comply with the
12 requirements of this section, with the exception of those deeds
13 which the Attorney General deems necessary when promulgating the
14 affidavit form.

15 SECTION 7. This act shall become effective November 1, 2026.

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